

Disposition

Plaintiff filed a request for dismissal with prejudice, subsequent to the filing of this motion.

This Motion is moot and will be vacated.

10. 9:00 AM CASE NUMBER: L25-04542

CASE NAME: CAPITAL ONE, N.A. VS. GESSER SANTOS

***HEARING ON MOTION IN RE:**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$10,004.92, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,234.92.

Costs are \$873.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$8,643.61.

Plaintiff to file order on Motion, as well as submit Judgment.

11. 9:00 AM CASE NUMBER: L25-05459

CASE NAME: JPMORGAN CHASE BANK N.A. VS. AMBER AMBRUS

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER
STIPULATION FILED 12/30/25**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint. The address was also in an attachment to the Complaint. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$7,328.51, plus costs, less any credits for payments received.

The Defendant made payments of \$2,199.

Costs are \$0.

The Stipulated Agreement was filed 7/21/25.